

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

THIRD SECTION

CASE OF KHORRSHR AND OTHERS v. RUSSIA

(Applications nos. 34241/16 and 15 others –
see appended list)

JUDGMENT

STRASBOURG

14 December 2023

This judgment is final but it may be subject to editorial revision.



In the case of Khorrshr and Others v. Russia,

The European Court of Human Rights (Third Section), sitting as a Committee composed of:

Peeter Roosma*, President*,
Ioannis Ktistakis,
Andreas Zünd*, judges*,
and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 23 November 2023,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the unlawful detention (deprivation of liberty). Some applicants also raised other complaints under the provisions of the Convention or Protocols to it.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

III. ALLEGED VIOLATION OF ARTICLE 5 § 1 OF THE CONVENTION

7. The applicants complained principally of the unlawful detention (deprivation of liberty). They relied, expressly or in substance, on Article 5 § 1 of the Convention.

8. The Court reiterates that the expressions "lawful" and "in accordance with a procedure prescribed by law" in Article 5 § 1 essentially refer back to national law and state the obligation to conform to the substantive and procedural rules thereof. It is in the first place for the national authorities, notably the courts, to interpret and apply domestic law. However, since under Article 5 § 1 failure to comply with domestic law entails a breach of the Convention, it follows that the Court can and should exercise a certain power to review whether this law has been complied with (see, among numerous other authorities, *Benham v. the United Kingdom*, 10 June 1996, §§ 40-41 *in fine*, *Reports of Judgments and Decisions* 1996-III).

9. In the leading cases of *Fortalnov and Others v. Russia,* nos. 7077/06 and 12 others, 26 June 2018, *Rozhkov v. Russia (no. 2),* no. 38898/04, §§ 91-96, 31 January 2017, *Butkevich v. Russia,* no. 5865/07, § 67, 13 February 2018, *Kuptsov and Kuptsova v. Russia,* no. 6110/03, § 81, 3 March 2011, and *Tsvetkova and Others v. Russia,* nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion on the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case these complaints are therefore admissible and disclose a breach of Article 5 § 1 of the Convention.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

11. Some applicants submitted other complaints which also raised issues under the Convention and its Protocols, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible.

12. Having examined all the material before it, the Court concludes that these complaints are also admissible and disclose violations of the Convention and its Protocols in the light of its findings in *Karelin v. Russia*, no. 926/08, §§ 58-85, 20 September 2016, concerning the absence of a prosecuting party in the proceedings under the Code of Administrative Offences (CAO); *Martynyuk v. Russia*, no. 13764/15, §§ 21-30 and 38-42,

8 October 2019, as to fairness of those proceedings and the lack of suspensive effect of an appeal against the sentence of administrative detention; *Novikova and Others v. Russia*, nos. 25501/07 and 4 others, §§ 125-31 and 189-212, 26 April 2016, *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018, *RID Novaya Gazeta and ZAO Novaya Gazeta v. Russia*, no. 44561/11, §§ 101-13, 11 May 2021 and *Bodalev v. Russia*, no. 67200/12, §§ 101-03, 6 September 2022, as to various interferences with the right to freedom of expression and the lack of relevant and sufficient reasons for those interferences; *Bodalev*, cited above, §§ 75-95, *Frumkin v. Russia,* no. 74568/12, §§ 100-42, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia,* no. 76204/11, §§ 53-75, 4 December 2014 and *Kasparov and Others v. Russia,* no. 21613/07, §§ 84-97, 3 October 2013, as to disproportionate measures taken against organisers or participants of public assemblies.

V. REMAINING COMPLAINTS

13. Lastly, some applicants raised further complaints under the Convention or Protocols to it. In view of the findings in paragraphs 10 and 12 above, the Court considers that there is no need to deal separately with these remaining complaints.

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

14. Regard being had to the documents in its possession and to its case-law (see, in particular, *Biryuchenko and Others v. Russia* [Committee], nos. 1253/04 and 2 others, § 96, 11 December 2014), the Court considers it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with these applications as they relate to facts that took place before 16 September 2022;

3. *Declares* the complaints concerning the unlawful detention (deprivation of liberty) and the other complaints under the well-established case-law of the Court, as set out in the appended table, admissible, and *finds* that there is no need to examine separately the remaining complaints;

4. *Holds* that these complaints disclose a breach of Article 5 § 1 of the Convention concerning the unlawful detention (deprivation of liberty);

5. *Holds* that there has been a violation of the Convention and its Protocols as regards the other complaints raised under the well-established case-law of the Court (see appended table);

6. *Holds*
   (a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State the rate applicable at the date of settlement;
   (b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 14 December 2023, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	Peeter Roosma
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Article 5 § 1 of the Convention (unlawful detention (deprivation of liberty))

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Start date of unauthorised detention	End date of unauthorised detention	Specific defects	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros) [1]
1.	34241/16 02/06/2016	**Aleksandr Sergeyevich KHORRSHR** 1985	Zboroshenko Nikolay Sergeyevich Mytishchi	23/11/2015	24/11/2015	Detention as an administrative suspect: no evidence/assessment of "exceptional circumstances" under Art. 27.3 § 1 CAO (see Butkevich v. Russia, no. 5865/07, §§ 63-64, 13 February 2018; Tsvetkova and Others v. Russia, nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018). Detention as an administrative suspect: the applicant remained in detention after the offence record had been compiled (see Korneyeva v. Russia, no. 72051/17, § 35, 8 October 2019)	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings under Art. 19.3 of CAO (final decision on 03/12/2015 by Moscow City Court)	4,000
2.	41846/17 06/06/2017	**Andrew Aleksandrovich WINGORODOV** 1970	Rotaru Vitalie Chisinau	14/12/2016	14/12/2016	Detention as an administrative suspect: no evidence/assessment of "exceptional circumstances" under Art. 27.3 § 1 CAO (see Butkevich v. Russia, no. 5865/07, §§ 63-64, 13 February 2018; Tsvetkova and Others v. Russia, nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018) , Detention as an administrative suspect: the applicant remained in detention after the offence record had been compiled (see Korneyeva v. Russia, no. 72051/17, § 35, 8 October 2019)		3,000
3.	46358/17 22/06/2017	**Vadim Pavlovich OZHOGIN** 1994	Memorial Human Rights Centre Moscow	27/11/2016	29/11/2016 Final judgment in the	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva		3,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Start date of unauthorised detention	End date of unauthorised detention	Specific defects	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros) [1]
					administrative offence proceedings was issued by the Moscow City Court on 22 December 2016; the applicant was sentenced to an administrative fine of RUB 1,000.	v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019), Detention as an administrative suspect: no evidence/assessment of "exceptional circumstances" under Art. 27.3 § 1 CAO (see Butkevich v. Russia, no. 5865/07, §§ 63-64, 13 February 2018; Tsvetkova and Others v. Russia, nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018) , Detention as an administrative suspect: the applicant remained in detention after the offence record had been compiled (see Korneyeva v. Russia, no. 72051/17, § 35, 8 October 2019)		
4.	46442/17 25/06/2017	**Andrey Aleksandrovich MASHARO** 1973	Uradovskikh Irina Leonidovna St Petersburg	24/08/2016	26/08/2016 Final decision of the St Petersburg City Court on 26/01/2017 dismissing the applicant's complaint about the unlawful detention	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019), Detention as an administrative suspect: no evidence/assessment of "exceptional circumstances" under Art. 27.3 § 1 CAO (see Butkevich v. Russia, no. 5865/07, §§ 63-64, 13 February 2018; Tsvetkova and Others v. Russia, nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018) , Detention as an administrative suspect: the applicant remained in detention after the offence record had been compiled (see Korneyeva v. Russia, no. 72051/17, § 35, 8 October 2019)		3,000

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5.	53795/17 17/07/2017	**Artem Valeryevich PARFENOV** 1994	Terekhov Konstantin Ilyich Moscow	23/03/2017	24/03/2017	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019), Detention as an administrative suspect: no evidence/assessment of "exceptional circumstances" under Art. 27.3 § 1 CAO (see Butkevich v. Russia, no. 5865/07, §§ 63-64, 13 February 2018; Tsvetkova and Others v. Russia, nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018), Detention as an administrative suspect: the applicant remained in detention after the offence record had been compiled (see Korneyeva v. Russia, no. 72051/17, § 35, 8 October 2019)	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings under Art. 20.1 of CAO (final decision on 12/04/2017 by Krasnodar Regional Court), Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - immediate execution of the sentence of detention in the above proceedings; an appeal against the conviction had no suspensive effect.	4,000
6.	61387/17 11/08/2017	**Pavel Pavlovich ZOREV** 1983	Zhlobitskiy Aleksandr Vladimirovich Severodvinsk	10/02/2017	11/02/2017	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019), Detention as an administrative suspect: no evidence/assessment of "exceptional circumstances" under Art. 27.3 § 1 CAO (see Butkevich v. Russia, no. 5865/07, §§ 63-64, 13 February 2018; Tsvetkova and Others v. Russia, nos. 54381/08 and 5 others,		3,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Start date of unauthorised detention	End date of unauthorised detention	Specific defects	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros) [1]
						§§ 121-22, 10 April 2018) , Detention as an administrative suspect: the applicant remained in detention after the offence record had been compiled (see Korneyeva v. Russia, no. 72051/17, § 35, 8 October 2019)		
7.	61668/17 11/08/2017	**Eduard Viktorovich SHITIK** 1961	Sholokhov Igor Nikolayevich Kazan	29/04/2017	29/04/2017	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019), Detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (see Tsvetkova and Others v. Russia, nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018)	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings under Art.20.2 § 5 of CAO (final decision on 13/06/2017 by the St Petersburg City Court)	4,000
8.	61733/17 11/08/2017	**Shakhnaz Davudovna SHITIK** 1964	Sholokhov Igor Nikolayevich Kazan	29/04/2017	29/04/2017	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019), Detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (see Tsvetkova and Others v. Russia, nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018)	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings under Art.20.2 § 5 of CAO (final decision on 13/06/2017 by St Petersburg City Court)	3,000
9.	70805/17 07/09/2017	**Artur Igorevich GIMAYEV** 1986	Sholokhov Igor Nikolayevich Kazan	11/06/2017	12/06/2017	Detention as an administrative suspect: the applicant remained in detention after the offence record had been compiled (see Korneyeva v. Russia, no. 72051/17, § 35, 8 October 2019)	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings under Art. 20.3 of CAO (final decision on 15/06/2017 by the Supreme	5,000, to be paid to the applicant, and 850,

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							Court of the Tatarstan Republic), Art. 10 (1) - various restrictions on the right to freedom of expression - during a football match the applicant swayed a banner saying "Zarya Kazan: Human will powers victory" and showing symbols resembling swastika (allegedly, it was an ancient Slavic solar symbol, "Kolovrat"); he was arrested and sentenced to 8-day detention in the above proceedings, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - immediate execution of the sentence of detention; an appeal against conviction had no suspensive effect.	to be paid directly to the applicant's lawyer, I. Sholokhov
10.	72058/17 21/09/2017	**Andrey Aleksandrovich KALIKH** 1972	Peredruk Aleksandr Dmitriyevich St Petersburg	12/06/2017	13/06/2017	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings under Art. 20.2 § 5	4,000, to be paid to the applicant, and

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Start date of unauthorised detention	End date of unauthorised detention	Specific defects	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros) [1]
			Golubok Sergey Aleksandrovich Vilnius			v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019), Detention as an administrative suspect: no evidence/assessment of "exceptional circumstances" under Art. 27.3 § 1 CAO (see Butkevich v. Russia, no. 5865/07, §§ 63-64, 13 February 2018; Tsvetkova and Others v. Russia, nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018) , Detention as an administrative suspect: the applicant remained in detention after the offence record had been compiled (see Korneyeva v. Russia, no. 72051/17, § 35, 8 October 2019)	of CAO (final decision on 04/07/2017 by St Petersburg City Court), Art. 10 (1) - various restrictions on the right to freedom of expression – the applicant was arrested at a protest rally on 12/06/2017 and given, in the above proceedings, a fine of RUB 10,000 for participation in that rally; the courts summarily dismissed his argument that he had been at the rally venue as an "observer" (for Index on Censorship, a non-governmental organisation campaigning for freedom of expression) for monitoring, making record of and publishing on police abuse against mass-media representatives during rallies.	850, to be paid directly to A. Peredruk and S. Golubok, jointly, in compensation for legal services
11.	12150/18 02/03/2018	**Nadezhda Viktorovna KOTS** 1955	Terekhov Konstantin Ilyich Moscow	08/07/2017	08/07/2018	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others	Art. 10 (1) - various restrictions on the right to freedom of expression - the applicant and other volunteers for A. Navalnyy's presidential	4,000, to be paid to the applicant, and

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						v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019)	campaign distributed, separately from each other, leaflets at different locations in Moscow on 08/07/2017; he was arrested and sentenced to a fine of RUB 15,000 under Art. 20.2 § 5 of CAO (final decision on 04/09/2017 by the Moscow City Court); the courts considered that the applicant had participated, together with them, in a single "rally", which had not been notified to the municipal authority as required under the Public Events Act.	850, to be paid directly to the applicant's lawyer, K. Terekhov
12.	24517/18 08/05/2018	**Valentin Gennadyevich MURZAYEV** 1972	Pershakova Yelena Yuryevna Moscow	08/10/2017	10/10/2017	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019), Detention as an administrative suspect: no evidence/assessment of "exceptional circumstances" under Art. 27.3 § 1	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in two sets of administrative-offence proceedings under Art. 20.2 §§ 2 and 5 of CAO (final decisions on 10/11/2017	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Start date of unauthorised detention	End date of unauthorised detention	Specific defects	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros) [1]
						CAO (see Butkevich v. Russia, no. 5865/07, §§ 63-64, 13 February 2018; Tsvetkova and Others v. Russia, nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018) , Detention as an administrative suspect: the applicant remained in detention after the offence record had been compiled (see Korneyeva v. Russia, no. 72051/17, § 35, 8 October 2019)	and 27/12/2017 by Perm Regional Court), Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - the applicant was arrested and sentenced, in the above proceedings, to fines of RUB 25,000 and RUB 15,000 for participation, on 07/10/2017, in a rally to support A. Navalnyy and then in a spontaneous gathering to support arrested protesters.	
13.	26290/18 23/05/2018	**Yegor Igorevich SHASHIN** 1993	Markin Konstantin Aleksandrovich Velikiy Novgorod	12/06/2017	12/06/2017	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019), Detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (see Tsvetkova and Others v. Russia, nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018)	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings under Art. 20.2 § 5 of CAO (final decision on 26/02/2018 by the Moscow City Court)	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Start date of unauthorised detention	End date of unauthorised detention	Specific defects	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros) [1]
14.	34702/18 10/07/2018	**Andrey Olegovich SOLOVYEV** 1961	Zhdanov Ivan Yuryevich Vilnius	12/06/2017	12/06/2017	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019)	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings under Art. 20.2 § 5 of CAO (final decision on 12/01/2018 by the Moscow City Court).	4,000
15.	37026/18 25/07/2018	**Mikhail Aleksandrovich YUDIN** 1994	Zhdanov Ivan Yuryevich Vilnius	12/06/2017	12/06/2017	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019)	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings under Art. 20.2 § 5 of CAO (final decision on 26/01/2018 by the Moscow City Court).	4,000
16.	14318/19 02/03/2019	**Sergey Alekseyevich KIRSANOV** 1955	Kholodtsova Inna Vadimovna Moscow	02/09/2018	03/09/2018	Detention as an administrative suspect: the applicant remained in detention after the offence record had been compiled (see Korneyeva v. Russia, no. 72051/17, § 35, 8 October 2019)	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings under Art. 19.3 of CAO (final decision on 06/09/2018 by the Moscow City Court)	4,000

[1] Plus any tax that may be chargeable to the applicants.